

25STCV25197 25STCV25197

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Case Number: 25STCV25197 Hearing Date: June 25, 2026 Dept: 307

14 TENTATIVE RULING 9:15 a.m., Thursday, June 25, 2026

NIGEL P.

DARE v. TASTAS, INC., et al. [25STCV25197]

DEMURRER

TO FIRST AMENDED COMPLAINT OF DEFENDANT TASTAS, INC.

MEET AND

CONFER: [UNCLEAR] Defendants'

counsel fails to clarify if meet and confer efforts occurred in-person, telephonically, or by video conference in compliance with the statutory requirements. (Mahrouyan Decl., ¶¶ 3-4.)

BACKGROUND:

Business partnership dispute alleging breach of contract, economic interference, fraud, and breach of fiduciary duty

TIMELINE:

Circa 2004: While working in the beauty industry, Plaintiff Nigel Dare ("Plaintiff") meets Defendant Raymonda Ghalbouny ("Raymonda"), and they begin a romantic relationship. Raymonda was the spouse of Mansour Ghalbouny ("Mansour"), who did not know about the relationship then. At present, Raymonda is also the personal representative of the Estate of Mansour Ghalbouny.

Circa 2006: Raymonda and Mansour approach

Plaintiff for help starting a beauty business designed around Plaintiff, using his name and likeness, industry knowledge, reputation, and customers.

2/21/2007: Defendant Tastas, Inc. (“Tastas”)

DBA Nigel's Beauty Emporium (the “Store”) is formed with two named partners, Mansour and Defendant Paul Buzad (“Buzad”) pursuant to an oral agreement with Plaintiff. (FAC, ¶¶ 17, 31.)

Unknown Date: After initial start-up loans were paid, Plaintiff is named as Tastas's third partner. (FAC, ¶ 20; But see Id. ¶ 65.)

Circa 2016: After Mansour discovers the relationship between Plaintiff and Raymonda, Mansour and Buzad “ban” Plaintiff from the Store and strip him of his rights as an owner, officer, and director of Tastas. (FAC, ¶ 24.)

Unknown Date: Defendants call a meeting with counsel for Buzad and Plaintiff, but their dispute over the Store is not resolved.

4/30/2018: Plaintiff receives 3,450 shares of Tastas's common stock.

1/20/2019: Plaintiff is listed as a director of Tastas.

Circa 3/2025: Defendants attempt to remove Plaintiff from the Board of Directors and as an officer of Tastas, but such removal ultimately does not occur. (FAC, ¶ 28.)

Circa 2025: Defendants engage in unspecified “misappropriation” of Tastas business and financial records.

8/25/2025: Plaintiff files the Complaint. The operative First Amended Complaint (“FAC”), filed 4/14/2026, alleges causes of action for:

1. Breach of Contract

2. Breach of the Implied Covenant of
Good Faith and Fair Dealing

3. Declaratory/Injunctive Relief

4. Intentional Interference with
Prospective Economic Advantage

5. Negligent Interference with
Prospective Economic Advantage

6. Fraudulent Misrepresentation

7. Fraud (Intentional
Misrepresentation)

8. Fraud (Concealment and
Non-Disclosure)

9. Equitable Relief (Breach of
Quasi-Contract, Unjust Enrichment, Constructive Trust)

10.
Breach
of Fiduciary Duty of Loyalty (Constructive Fraud)

11.
Breach
of Fiduciary Duty (Removal of Manager)

12.
Accounting

13.
Conversion

14.
Violation
of California Penal Code section 496

5/21/2026: Tastas files this Demurrer, which is followed by Plaintiff's Opposition (6/4/2026) and Tastas's Reply (6/10/2026).

6/4/2026: Plaintiff attempts to file a Second Amended Complaint ("SAC") without leave of court, which is rejected.

TENTATIVE

RULING: DEMURRER TO THE FIRST AMENDED COMPLAINT OF DEFENDANT TASTAS, INC. is SUSTAINED with LEAVE TO AMEND.

DEMURRER

Tastas

demurs to the second through fourteenth causes of action in the FAC pursuant to Code of Civil Procedure section 430.10, subdivision (e).

The Court

finds that Plaintiff's lawsuit against Tastas, as currently pled, is time-barred and impermissibly uncertain. "The applicable statute of limitations is determined by the nature of the right sued upon rather than the form of the action or the relief demanded." (Newport Harbor Ventures, LLC v. Morris Cerullo World Evangelism (2016) 6 Cal.App.5th 1207, 1224, fn. 5, aff'd (2018) 4 Cal.5th 637 (Newport Harbor).) "A period of limitations ordinarily commences at the time when the obligation or liability arises, regardless of the plaintiff's ignorance of the cause of action." (Utility Audit Co., Inc. v. City of Los Angeles (2003) 112 Cal.App.4th 950, 962.) "Even under the discovery rule, however, the limitations period begins to run when the plaintiff has information that would put a reasonable person on inquiry." (Ibid.) In other words, "[u]nder the discovery rule, suspicion of one or more of the elements of a cause of action, coupled with knowledge of any remaining elements, will generally trigger the statute of limitations period." (Fox v. Ethicon Endo-Surgery, Inc. (2005) 35 Cal.4th 797, 807 (Fox).)

In this

case, Plaintiff's claims are subject to the following statutes of limitation:

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Claims

arising from oral contract, including Plaintiff's second cause of action for breach

of the implied covenant, is subject to the two-year limitations period under Code of Civil Procedure section 339. (Code Civ. Proc., § 339(1).)

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Plaintiff's

fourth and fifth causes of action for intentional and negligent interference with prospective economic advantage, respectively, his twelfth cause of action for an accounting, and his third and ninth causes of action for equitable relief arising out of implied contractual obligations based on the alleged oral agreement are also governed by the two-year limitations period under Code of Civil Procedure section 339. (Augusta v. United Service Automobile Assn. (1993) 13 Cal.App.4th 4, 9 ["It is now well established that a cause of action for interference with prospective economic advantage, an action involving a property right, is governed by the two-year limitations period of section 339, subdivision 1..."]; Newport Harbor, supra, 6 Cal.App.5th at p. 1224, fn. 5 ["The California Supreme Court ... has held that where the primary purpose of an equitable cause of action is to recover money under a contract, the statute of limitations applicable to contract actions governs the equitable claim."].)

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Plaintiff's

sixth, seventh, and eighth causes of action for fraud and his thirteenth cause of action for conversion are governed by the three-year limitations period under Code of Civil Procedure section 338. (Code Civ. Proc., § 338, subds. (c)(1), (d).)

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Because

Plaintiff's tenth and eleventh causes of action for breach of fiduciary duty arise from allegations of Defendants' fraudulent conduct, Code of Civil Procedure section 338, subdivision (d) provides the applicable three-year limitations period for these claims. (See Boyd v. Blankman (1865) 29 Cal. 19, 25 [three-year limitation period for action grounded in fraud applies to constructive fraud claim]; William L. Lyon & Associates, Inc. v. Superior Court (2012) 204 Cal.App.4th 1294, 1312, *italics added* ["Breach of fiduciary duty not amounting to fraud or constructive fraud is subject to the four-year 'catch-all statute' of Code of Civil Procedure section 343."].)

Plaintiff's fourteenth cause of action for violation of Penal Code section 496 is subject to either the one-year limitations period under Code of Civil Procedure section 340, subdivision (a) for treble damages or the three-year limitations period under Code of Civil Procedure section 338, subdivision (a) for actual damages. (*Naftzger v. American Numismatic Society* (1996) 42 Cal.App.4th 421, 432, as modified on denial of reh'g (Mar. 4, 1996) ["The crimes of withholding, concealing, or selling stolen property must be prosecuted within three years of their commission."]; *G.H.I.I. v. MTS, Inc.* (1983) 147 Cal.App.3d 256, 277 ["statutes which provide for recovery of damages additional to actual losses incurred, such as double or treble damages, are considered penal in nature ... and thus governed by the one-year period of limitations stated in section 340, subdivision (1)."].)

Accordingly, each cause of action asserted against Tastas in the FAC is subject to a limitations period ranging from one to three years. Plaintiff filed the original Complaint in this action on August 25, 2025. Thus, unless Plaintiff can establish a basis for tolling of the above limitation periods, any liability for conduct occurring on or before August 2022 is necessarily time-barred.

Here, Plaintiff alleges that he entered into an oral agreement with Defendants in 2006, in which he agreed to create Tastas with Mansour and Buzad using Plaintiff's name and likeness, reputation, customers, and industry knowledge in exchange for a one-third partnership with equal access to the Store itself, the Store's financial information, and decision-making about the Store. (FAC, ¶¶ 16, 31.) Mansour and Buzad created Tastas pursuant to the alleged oral agreement on February 21, 2007. (*Id.* ¶ 17.) For almost one decade the parties worked together to make the Store quite successful. (*Id.* ¶ 18.) However, in approximately 2016, Plaintiff alleges that when Mansour learned of Plaintiff's affair with Raymonda, Mansour and Buzad banned Plaintiff from the Store, took away his privileges in the partnership, and "stripped [Plaintiff] of all the rights he has as an owner, office, and director" of Tastas. (*Id.* ¶ 24.) After Mansour and Buzad effectively shut Plaintiff out of the business, Plaintiff alleges Defendants would not let Plaintiff pick up his distribution checks, "paid themselves loans that did not exist," and asserted that Plaintiff had to pay taxes on money he did not receive. (*Id.* ¶¶ 25-26.) Although the parties met with their attorneys, they were unable to resolve their dispute. (*Id.* ¶ 26.)

The

allegations regarding Defendants' conduct in 2016 demonstrate that Plaintiff was aware of Defendants' wrongdoing and the resulting harm to Plaintiff in 2016. When Defendants barred Plaintiff from access to the store, stripped him of his rights as a shareholder and corporate leader of Tastas, and began to misappropriate business funds, Plaintiff had adequate notice of the causes of action now asserted in the FAC, including Plaintiff's contract, fraud, tort, and equitable theories related to Plaintiff's rights under the oral agreement and the financial and leadership operations of Tastas. Nevertheless, Plaintiff failed to file the instant lawsuit until August 2025, nearly a decade after Plaintiff's alleged exclusion from Tastas and all business operations in 2016.

The

allegations in the FAC strongly contradict Plaintiff's characterization of the events in 2016 as only giving rise to mere "suspicion" of wrongdoing. (Opp., at p. 2.) Moreover, even if Plaintiff did not have actual awareness of the specific extent of Defendants' conduct in 2016, Defendants' actions barring Plaintiff from the premises of the Store and stripping Plaintiff of his rights and privileges with respect to Tastas was sufficient to put Plaintiff on notice of his obligation to diligently investigate his potential claims as early as 2016. (FAC, ¶¶ 24-26.) "The discovery rule only delays accrual until the plaintiff has, or should have, inquiry notice of the cause of action. The discovery rule does not encourage dilatory tactics because plaintiffs are charged with presumptive knowledge of an injury if they have 'information of circumstances to put [them] on inquiry ' or if they have 'the opportunity to obtain knowledge from sources open to [their] investigation.'" (Fox, supra, 35 Cal.4th at pp. 807-808, cleaned up.) The FAC offers no factual details from which to infer that Plaintiff was justified in his delay. Because the facts alleged in the FAC indicate that Plaintiff had inquiry notice of Defendants contractual breaches, economic interference, fraud, breaches of fiduciary duty, and theft, Plaintiff's claims accrued when he was excluded from the business, finances, and the privileges of leadership in 2016.

Plaintiff's

allegations related to events occurring after 2016 do not help Plaintiff avoid the respective limitations periods because they are not sufficiently specific to state an independent claim for relief. The FAC makes three references to events after 2016: (1) that Plaintiff was issued Tastas stock in 2018 and

listed as a Tastas director in 2019 (FAC, ¶ 21), (2) that Defendants attempted to remove Plaintiff from the Board of Directors and as an officer of Tastas in 2015, but the meetings were cancelled and no removal ultimately occurred (Id. ¶ 28), and (3) Plaintiff's demands for Tastas records revealed unspecified "misappropriation" in 2025 (Id. ¶ 29). Nevertheless, Plaintiff does not allege any factual details tying any specific incidents of wrongdoing to any particular Defendants, such as the specific dates, transactions, or events giving rise to what Plaintiff vaguely describes as "misappropriation." "In assessing the sufficiency of the allegations of delayed discovery, the court places the burden on the plaintiff to 'show diligence'; 'conclusory allegations will not withstand demurrer.'" (Fox, supra, 35 Cal.4th at p. 808.) Here, Plaintiff's conclusory allegations of "misappropriation" are factually insufficient to state any new or additional claim against Defendants and fail to provide a basis for tolling of the existing causes of action, given that Plaintiff was already on inquiry notice of Defendant's conduct related to Tastas and its finances and management in 2016. It remains unclear why Plaintiff delayed his investigation into Tastas's records until 2025, given that the events giving rise to the instant lawsuit occurred as early as 2016. Nor are Plaintiff's vague allegations of misconduct in 2025 adequately tied to the wrongdoing in 2016 to support Plaintiff's argument under the continuous accrual doctrine. (Opp., at p. 4.)

Further, several details of the FAC render Plaintiff's claims fatally uncertain. The entire crux of Plaintiff's lawsuit turns on events in 2016 when Plaintiff was wrongfully "stripped" of his rights as an owner, officer and director of the Store and stopped receiving distribution checks. (FAC, ¶¶ 23-24.) Later in the FAC, however, Plaintiff states that he was not made a partner of the Store until 2018 when he was given stock shares and was officially added as a director of Tastas in 2019. (Id. ¶ 65; see Id. ¶ 20.) It is not clear how Plaintiff could have lost his rights as a shareholder and director of Tastas when the dispute arose in 2016 if he was not even a partner until 2018. Relatedly, Plaintiff identifies a December 2021 dividend payment that he did not receive, but does not clarify whether he had, in fact, been receiving dividend payments up until December 2021 or after December 2021. (Id. ¶ 74.) Because Plaintiff's theory of recovery turns on his exclusion from Tastas, it is evident that facts explaining the events between 2016 and 2018/2019 are omitted from the FAC. Nevertheless, the issue remains that the FAC contains no facts which place the alleged wrongdoing within the limitations period.

For the
aforementioned reasons, the Court agrees with Tastas that the factual allegations confirm that Plaintiff's claims against Tastas, as framed in the FAC, are time-barred pursuant to their respective statutes of limitation. As currently pled, Plaintiff's FAC fails to adequately state any claim that is not based on the events first discovered in 2016.

Considering
the policy favoring liberal amendment of pleadings and the significant uncertainty in Plaintiff's timeline of events, the Court finds leave to amend is warranted here. It is clear that Plaintiff has omitted substantial factual details about his relationship with the Store and Defendants over the past two decades. Even those allegations of misconduct that are included in the FAC are not identified by date. The Court cannot meaningfully evaluate Plaintiff's delayed discovery and continuous accrual arguments without a clarified timeline of events with respect to: (1) when the alleged misconduct and misappropriation occurred here, (2) when the facts were known to or discoverable by Plaintiff upon reasonable diligence, (3) why Plaintiff was unable to conduct diligence, such as a corporate records request until March 2025, and (4) what events occurred (and when) between 2016 and 2018 when Plaintiff purportedly became a partner and between 2019 and 2025 when Defendants allegedly attempted to oust Plaintiff as a board member and officer of Tastas. Plaintiff also needs to allege additional factual details pertaining to the "misappropriation" that he discovered in 2025, including the nature of the "misdeeds, breaches and frauds" that supposedly occurred after 2016, when such misconduct occurred, by who, and why such conduct could not have been discovered by Plaintiff earlier (considering that he was a director of Tastas by at least 2019). Ultimately, to the extent that Plaintiff is attempting to assert claims that do not arise out of the time-barred events in 2016, Plaintiff should be entitled to at least one opportunity to re-plead any such causes of action where appropriate and clarify the uncertainty in his factual chronology before the Court dismisses this lawsuit in its entirety. With additional factual detail, the Court will be better suited to evaluate the merits of Tastas's remaining challenges to the pleading.

Finally,
Plaintiff's proposed SAC (filed without leave of court) fails to adequately cure the above-identified pleading defects in the FAC. The limited factual allegations added to the proposed SAC still do not clarify why Plaintiff was unable to timely discover the specific extent of Defendant's wrongdoing after his

initial “exclusion” from Tastas in 2016. For example, the proposed SAC does not add any facts justifying Plaintiff’s delay in conducting due diligence between 2016 and 2025 or explaining how the unidentified “misappropriation” uncovered in 2025 was either a continuation of the events in 2016 or otherwise occurred within the statute of limitations. Nor does the proposed SAC clarify the timeline of Plaintiff’s involvement as a partner, shareholder, officer, director, or board member of Tastas to resolve the uncertainty relating to Plaintiff’s status at the company from 2016 to present. Accordingly, if Plaintiff wishes to amend the FAC, an alternate SAC must be filed that addresses the pleading defects identified here.

Therefore,

Tastas’s demurrer to each cause of action in the FAC is SUSTAINED with LEAVE TO AMEND.

Defendant Tastas, Inc. to serve notice of ruling. This tentative ruling (“TR”) shall be the order of the Court unless changed at the hearing and shall by this reference be incorporated into the Minute Order.

TR emailed to counsel and posted to court’s website on 6/24/16